

Tamil Nadu Establishment of Private Law Colleges (Prohibition) Act, 2014

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State of Tamilnadu- Act

Tamil Nadu Establishment of Private Law Colleges (Prohibition) Act, 2014

TAMILNADU

India

Tamil Nadu Establishment of Private Law Colleges (Prohibition) Act, 2014

Act 13 of 2014

Published on 2 September 2014

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Tamil Nadu Establishment of Private Law Colleges (Prohibition) Act, 2014

(Act

No 13 of 2014

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Statement of Objects and Reasons. - The Government have taken a policy decision to establish adequate number of Government Law Colleges in the State in a phased manner, to impart legal education at affordable cost. The past experience reveals that private trusts/societies are not able to provide legal education at affordable cost to the economically and socially weaker Sections and also not able to continue to run the law colleges successfully. The Government have, therefore, decided to prohibit the establishment of law colleges by the private persons in the State by

undertaking legislation.

2. The Bill seeks to give effect to the above decision.

[Dated 2.9.2014]

An Act to prohibit the establishment of law colleges by private persons in the State of Tamil Nadu.

Whereas, in consonance with the spirit of Article 41 of the Constitution of India, the Government have taken a policy decision to establish adequate number of Government Law Colleges in the State in a phased manner, to impart legal education at affordable cost;

And Whereas, the past experience reveals that private persons are not able to provide legal education at affordable cost to the economically and socially weaker sections and also not able to continue to run the law colleges;

Now, therefore, the Government have decided to prohibit the establishment of law colleges by private persons in the State.

Be it enacted by the Legislative Assembly of the State of Tamil Nadu in the Sixty-fifth Year of the Republic of India as follows: -

1.

Short title and commencement.

(1)

This Act may be called the Tamil Nadu Establishment of Private Law Colleges (Prohibition) Act, 2014.

(2)

It shall come into force at once.

2.

Definitions.

- In this Act, unless the context otherwise requires, -

(a)

"Government" means the State Government;

(b)

"Law College" means any college or institution providing any course of study or training in law for admission to the examination for law degrees, diplomas or other academic distinctions of the University;

(c)

"private person" includes trust, society, association of individuals or company, whether incorporated or not or any other private body or group of persons whether recognised by law or not or individual or individuals;

(d)

"University" means the Tamil Nadu Dr. Ambedkar Law University established under section 3 of the Tamil Nadu Dr. Ambedkar Law University Act, 1996.

3.

Private Persons not to establish Law Colleges.

(1)

No private person shall establish any law college or institution providing any course of study or training in law for admission to the examination for law degrees, diplomas or other academic distinctions of the University.

(2)

Notwithstanding anything contained in any other law, judgment or order, no permission or certificate shall be granted by the Government or by the University to any private person to establish any law college or institution providing any course of study or training in law for admission to the examination for law degrees, diplomas or other academic distinctions of the University.

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